

Form FD9

20

No.

Supreme Court of Nova Scotia
(Family Division)

Between: [copy standard heading]

[name]

Applicant

and

[name]

Respondent

Affidavit Supporting a Motion for Directions (Family)

I make [oath/affirm] and give evidence as follows:

1 I am [name], the [applicant/respondent] and I filed a [choose one] :

- ☐ Notice of Application
- ☐ Notice of Variation Application
- ☐ Response to Application
- ☐ Response to Variation Application

on [date], 20 .

2 I have personal knowledge of the evidence [sworn to/affirmed] in this affidavit except where otherwise stated to be based on information or belief.

3 I state, in this affidavit, the source of any information that is not based on my own personal knowledge, and I state my belief of the source.

4 I have made a motion, filed on [date], 20 , for an order giving directions and appointing a time, date, and place for the hearing, and this affidavit provides the required supporting evidence.

5 There are: [choose one]

- ☐ no persons who have an interest in the application other than the parties.
 - ☐ the following persons who may have an interest in the matters raised by the application [provide names]:
-

6 I expect to file, in addition to my own affidavit(s) [choose one]:

- ☐ no affidavits from witnesses.
- ☐ affidavits from the following witnesses, dealing with the following subjects:

<i>Name of Witness</i>	<i>Subject</i>

7 I know that the following other persons may have relevant information:

<i>Name of Witness</i>	<i>Possible Subject</i>

8 Witnesses: [choose one]

- ☐ I do not anticipate discovering any witnesses.
- ☐ I anticipate discovering the following witnesses [list names] :

9 I have filed all statements, documents, and information required by the *Nova Scotia Civil Procedure Rules*, and the applicable legislation, as follows:

- ☐ parenting statement filed on [date] , 20
- ☐ statement of income filed on [date] , 20
attached supporting documents as required and listed in the statement
- ☐ statement of special or extraordinary expenses filed on [date] , 20
- ☐ attached supporting documents as required and listed in the statement

- ☐ statement of undue hardship circumstances filed on [date] , 20
attached supporting documents as required and listed in the statement
- ☐ statement of expenses filed on [date] , 20
attached supporting documents as required and listed in the statement
- ☐ statement of property filed on [date] , 20
attached supporting documents as required and listed in the statement
- ☐ pre-hearing brief filed on [date] , 20
- ☐ affidavit of [name]
filed on [date] , 20
- ☐ other affidavits and documents [give specifics, filing date, and indicate if each
document was filed in support of a motion and whether a request will be made to rely
on the document at the hearing] :

10 I have received a copy of the Respondent's: [choose one]

- ☐ Response to Application, filed on [date] , 20 , by the other party(ies),
[name(s)]
- ☐ Response to Variation Application, filed on [date] , 20 , by the other
party(ies), [name(s)]
- ☐ I do not know whether the other party(ies), [name(s)]
has filed a Response to Application or a Response to Variation
Application, as I have not received any copy of a filed response.

11 I have received a copy of the following statements, documents, and information required
by the *Nova Scotia Civil Procedure Rules*, and the applicable legislation filed on [date] ,
20 , by the other party(ies), [name(s)]
[specify documents from above list including filing dates]:

12 I require the following statements, documents, and information from the other party(ies),
[name(s)], and I believe that these
are also required by the *Nova Scotia Civil Procedure Rules*, and the applicable
legislation [specify documents from above list]:

- 13 To my knowledge, the following information may significantly affect the time needed to prepare for the hearing and the length of the hearing itself [identify information and include, if applicable, details as required under Rule 5.07(4)(e) to (g)] :

[*Sworn to/Affirmed*] before me)
on [date] , 20)
at [City/Town] , Nova Scotia)
)
)
)

Signature of Authority

Print name:

Official capacity:

Signature